

LIABILITY WAIVER AND RELEASE

- (a) I _____ (**Participant**) HEREBY WAIVE AND RELEASE, indemnify, hold harmless and forever discharge Jump Start Sports, and its agents, employees, officers, directors, affiliates, successors and assigns, coaches, teachers and trustees of and from any and all claims, demands, debts, contracts, expenses, cause of action, lawsuits, damages, and liabilities, of every kind of nature, whether known or unknown, in law or equity, that I ever had or may have, arising from or in any way related to my participation in any of the events or activities conducted by, on the premises, of, or for the benefit of, Jump Start Sports, provided that this waive of liability does not apply to any acts of gross negligence, or intentional, wilful or wanton misconduct.
- (b) I understand that the activities, in which I will participate, are inherently dangerous and may cause serious or grievous injuries, including bodily injury, damage to personal property and/or death. On behalf of myself, my heirs, assigns, administrators, executors and next of kin, I waive all claims of damage, injuries and death sustained to me or my property, that I may have against the aforementioned release party to such activities, including claims in tort, contract, equity or otherwise.
- (c) I acknowledge, agree and represent that I understand the nature of the activities provided at Jump Start Sports, I AM IN GOOD HEALTH and in PROPER PHYSICAL CONDITION to participate in such activities. I further agree and warrant that if at any time I believe conditions to be unsafe, I will IMMEDIATELY DISCONTINUE further participation in the activity
- (d) I confirm that I have no pre-existing medical conditions that would prevent safe participation in the activities, including but not limited to: cardiovascular conditions, respiratory disorders, musculoskeletal injuries, or any other medical condition that could be aggravated by physical activity. I agree to complete a health screening questionnaire prior to participation and acknowledge that may require medical clearance from a qualified healthcare provider if any health concerns are identified. I understand that failure to disclose relevant health information or obtain required medical clearance will void this waiver.
- (e) I agree to complete a comprehensive Pre-Activity Health Screening Form at least [DAYS] days prior to participation, which shall include detailed disclosure of any cardiovascular conditions, respiratory issues, musculoskeletal injuries, medications, allergies, and previous injuries. I acknowledge that participation may be suspended or terminated if: (a) the Health Screening Form reveals conditions requiring medical evaluation; (b) I fail to obtain required medical clearance; or (c) I knowingly provide false or misleading health information. I understand that Jump Start Sports reserves the right to request additional medical documentation or specialist clearance for specific health conditions identified during screening.

- (f) By this Waiver, I assume any risk, and take full responsibility and waive any liability for personal injury, death, damage, or loss of personal property, associated with Jump Start Sports, including but not limited to The Client will participate in coach-supervised, child-first multi-sport and physical activity sessions, including but not limited to: warm-ups and cool-downs; fundamental movement skill activities (running, jumping/landing, balancing, agility and coordination tasks); small-sided/conditioned games and invasion games; and sport-specific skill practices drawn from soccer, Australian Football (AFL), basketball, tennis and dodgeball, plus relay and obstacle activities. Sessions are delivered on school grounds (oval, courts, undercover) and may involve variable outdoor conditions. Rules are designed to minimise contact (no tackling), though incidental contact, rapid changes of direction, ball striking/throwing/catching, and uneven surfaces are inherent to play. Activities may be modified for age, ability, weather and venue safety..
- (g) This WAIVER AND RELEASE supersedes any prior written or oral agreements between them concerning the subject matter of this WAIVER AND RELEASE. The provisions of this WAIVER AND RELEASE may be waived, altered, amended or repealed, in whole or in part, only upon the prior written consent of all parties.
- (h) The provision of this WAIVER AND RELEASE will continue in full force and effect even after the termination of the activities conducted by, on the premises of, or for the benefit of Jump Start Sports, whether by agreement, by operation of law, or otherwise.
- (i) The laws of Western Australia govern this document.
- (j) I have read, understood and fully agree to the term of this WAIVER AND RELEASE. I understand and confirm that by signing this WAIVER AND RELEASE I have given up considerable future legal rights.
- (k) I have signed this agreement freely, voluntarily, under no duress or threat of duress, without inducement, promise or guarantee being communicated me.
- (l) I specifically acknowledge and understand the inherent risks associated with each sporting activity, including but not limited to: in soccer - collision with other players, goal posts or ground surfaces; in basketball - finger, wrist and ankle injuries from ball handling and jumping; in tennis - repetitive strain injuries and impact from racquet or ball; in Australian Football - falls during marking attempts and ball-related impacts; and in dodgeball - impacts from thrown balls and rapid directional changes. I understand that while safety measures and supervision are in place, these sport-specific risks can result in sprains, strains, fractures, concussions or other serious injuries requiring immediate medical attention.